

THE UNIVERSAL HOUSE OF JUSTICE

1998-08-27

To an individual believer dear b aháí friend

1 reply to your letter . . . seeking clarification on the “interpretative function”
2 of that institution. . . .
3 in the light of the Teachings which are well known to you, and given the
4 repeated statements of the house of justice on this subject, it is not correct
5 to insist that the house of justice has an interpretative function. This mat-
6 ter has been dealt with in three published letters, dated 9 march 1965, 27
7 may 1966 and 7 december 1969, appearing in Messages from the Universal
8 House of Justice: 1963–1986 (u.S. bahá’í publishing T rust). A careful study
9 of these letters can provide you with the answers you seek. however, the 282.1

283 1

283 2

284 1996–2000 • T h e f o u r Y e a r P l a n

285 6house of justice is happy to offer some further comments for your consid-
286 eration.

287 Any reference to authoritative or binding interpretation of bahá’í Scrip-
288 ture is a reference to the divinely guided meaning given to such Scripture
289 by either ‘Abdu’l-b ahá or the guardian, the two persons authorized in the
290 sacred Texts to interpret the Teachings. with regard to Shoghi effendi, your
291 letter cites a passage from the 9 march 1965 letter of the house of justice
292 which says: “The guardian reveals what the Scripture means; his interpreta-
293 tion is a statement of truth which cannot be varied. upon the universal
294 house of justice, in the words of the guardian, ‘has been conferred the
295 exclusive right of legislating on matters not expressly revealed in the bahá’í
296 writings.’” in keeping with its legislative function the house of justice exer-
297 cises the role of elucidation based on passages in the will and Testament of

298 'Abdu'l-b ahá and statements in the writings of the guardian. for example,

299 'Abdu'l-b ahá states:

it is incumbent upon these members (of the universal house of jus-

300 tice) to . . . deliberate upon all problems which have caused difference,

301 questions that are obscure and matters that are not expressly recorded in the book . . .
and bear upon daily transactions. . . .

302 (Will and Testament of ' Abdu'l-Bahá (wilmette: b ahá'í p ublishing T rust,
303 1971), p. 20)

304 further, in response to a question raised by a National Spiritual Assembly

305 about the universal court of Arbitration, the guardian, in a letter dated 9

306 April 1923, defined such explanation as being in the domain of the univer-

307 sal h ouse of j ustice and anticipated its function of elucidation:

. . . regarding the nature and scope of the universal court of Arbi-

the master's explicit instructions, all important fundamental ques-

308 tions must be referred. . . .

(published in Bahá'í Administration: Selected Messages 1922–1932

(wilmette: b ahá'í p ublishing T rust, 197), p. 7)

The meanings of the terms “elucidation” and “interpretation,” as they

309 are used with regard to the functions of bahá'í institutions, should not of 283.3

283 3a

283 4

283 4a

283 5

284 m eS Sa g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

285 6course be confused with each other. The elucidations of the universal house

286 of justice stem from its legislative function, and as such differ from inter-

287 pretation. The divinely inspired legislation of the house of justice does not

288 attempt to say what the revealed word means—it states what must be done

289 in cases where the revealed Text or its authoritative interpretation is not

290 explicit; and in this context it offers explanations. it is, therefore, on quite

291 is empowered to abrogate or amend its own legislation whenever it judges the
conditions make this desirable. The major distinction between the two functions of
elucidation and interpretation, to repeat the point differently,

292 is that legislation with its resultant outcome of elucidation is susceptible of
293 amendment by the house of justice itself, whereas the guardian's interpre-
294 tation is a statement of truth which cannot be varied.

while the house of justice does not interpret, it makes deductions on

295 the basis of the revealed Texts and their authorized interpretations. This is clearly
indicated in the following statement of 'Abdu'l-b ahá:

296 briefly, this is the wisdom of referring the laws of society to the house
297 of justice. in the religion of islám, similarly, not every ordinance was
298 explicitly revealed; nay not a tenth part of a tenth part was included in the Text;
although all matters of major importance were specifically

referred to, there were undoubtedly thousands of laws which were

299 unspecified. These were devised by the divines of a later age accord-ing to the laws of
islamic jurisprudence, and individual divines made

300 conflicting deductions from the original revealed ordinances. All these were
enforced. Today this process of deduction is the right of the body of the house of justice, and
the deductions and conclusions of

individual learned men have no authority, unless they are endorsed

301 by the house of justice. The difference is precisely this, that from the

conclusions and endorsements of the body of the house of justice

whose members are elected by and known to the worldwide bahá'í

302 community, no differences will arise; whereas the conclusions of in-dividual divines
and scholars would definitely lead to differences, and

result in schism, division, and dispersion. The oneness of the word

would be destroyed, the unity of the faith would disappear, and the

303 edifice of the f aith of g od would be shaken.

(wilmette: b ahá'í p ublishing T rust, 1996), p. 86)283.6

283 6a

284 1996–2000 • T h e f o u r Y e a r P l a n

285 65in the normal use of the term, interpretation is the natural activity of

286 an intelligent mind. As has been stated on previous occasions in the com-

287 munications of the house of justice, there is an important distinction made
 288 in the faith between authoritative interpretation, as described above, and
 289 the interpretation which every believer is fully entitled to voice. believers
 290 are free, indeed are encouraged, to study the writings for themselves and to
 291 express their understanding of them. Such personal interpretations can be
 292 most illuminating, but all bahá'ís, including the one expressing the view,
 293 however learned he may be, should realize that it is only a personal view and can
 never be upheld as a standard for others to accept, nor should conten-
 294 tion ever be permitted to arise over differences in such opinions.
 295 As to your reference to the perception of certain scholars that the opin-
 296 ions of the house of justice are neither binding nor authoritative, the fol-
 297 lowing words of 'Abdu'l-b ahá are illuminating:
 298 let it not be imagined that the house of justice will take any decision

**according to its own concepts and opinions. god forbid! The Supreme
 house of justice will take decisions and establish laws through the
 inspiration and confirmation of the holy Spirit, because it is in the**

299 safekeeping and under the shelter and protection of the Abhá beauty,
 300 and obedience to its decisions is a bounden and essential duty and an absolute
 obligation, and there is no escape for anyone.

(published in Wellspring of Guidance: Messages 1963–1968

(wilmette: b ahá'í p ublishing T rust, 1976), pp. 8–5)

301 The house of justice trusts that these comments will assist you to arrive
 302 at the clarification you seek, and it assures you of its prayers in the holy
 303 Shrines on your behalf.
 304 with loving b ahá'í greetings,

for Department of tHe secretariat283.7

283 8

283 8a

283 9

284 m eS Sa g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

285 66284

**Arrests, Imprisonment, and Confiscation of Property
of Bahá'ís in Iran**

[signed: The Universal House of Justice]